v. Ensuring that consumers are charged fair price.

vi. Ensuring uninterrupted supply of goods.

vii. Ensuring the availability of goods in correct quantity and right size.

viii. Protecting the consumers against unfair trade practices of unscrupulous trader

xi. Protecting the consumers against pollution of various kinds

x. Protecting consumers against the evil effect of competition.

Importance of Consumer Protection

Consumer protection has a wide agenda. It not only purports to educate consumers about their rights and responsibilities, but also helps in getting their grievances redressed. It provides judicial machinery for protecting the interests of consumers to come together and organise themselves into consumer associations for protection and promotion of their interests. Consumer protection has a special significance for business too.

Objectives of the Consumer Protection Act 1986

Following are the objectives of Consumer Protection act 1986

i. Protection of consumers against marketing of goods which are hazardous and dangerous to life and property of consumers.

ii. Providing correct and complete information about quality, quantity, purity, price and standard of goods purchased by consumers.

iii. Protecting consumers from unfair trade practices of traders.

iv. Empowering consumers to seek redressal against exploitation

v. Educating the consumer of their rights and duties

vi. Ensuring better standard of living for consumers by providing them with quality products at fair price.

vii. Putting in place right mechanism like councils and other authorities to enable the consumers to enforce their rights.

16.10 'Caveat Emptor'

'Caveat emptor' is a Latin term that means "let the buyer beware." Similar to the phrase "sold as is," this term means that the buyer assumes the risk that a product fails to meet expectations or have defects. In other words, the principle of caveat emptor serves as a warning to the buyers that they have no recourse with the seller if the product does not meet their expectations.

The term actually means that 'let a purchaser beware', for he ought not to be ignorant of the nature of the property which he is buying from another party. The assumption is that buyers will inspect and otherwise ensure that they are confident with the integrity of the product before completing a transaction. This does not, however, give sellers the green light to actively engage in fraudulent transactions.

16.11 Caveat Venditor

Caveat emptor was the rule for most purchases and land sales prior to the Industrial Revolution, although sellers assume much more responsibility for the integrity of their goods in the present day.

Today, most sales in the U.S. fall under the principle of caveat venditor, which means "let the seller beware," by which goods are covered by an implied warranty of merchantability. Unless otherwise advertised (for example, "sold as is") or negotiated with the buyer, nearly all consumer products are guaranteed to work, if used for their intended purpose

12th Commerce Unit 6.indd 135 09-12-2021 11.28.29 AM